

		the entirety of the letter could have been sent the first week of December 2025. Petitioners further argue that no sanctions should be awarded because of the "very abbreviated meet-and-confer period before Respondent's counsel filed the Motion." (Id. at 7:7-8.) The court finds such argument unpersuasive. It was Citibank that imposed the short time limit for Respondent to file the motion to quash, even over Respondent's objection. (Id. at Ex. D.) Moreover, Petitioners do not address their failure to serve Respondent with a Notice to Consumer or with a copy of the subpoena. Had Petitioners given proper notice of the subpoena to Respondent, Respondent would have had sufficient time to meet and confer before filing a motion to quash. Instead, Respondent had to prepare and file a motion to quash in a short period of time during the holiday season. Finally, Petitioners argue that sanctions should not be awarded because they ultimately narrowed the scope of the subpoena in good faith and because the subpoena was not oppressive or unreasonable. The court is not persuaded. While the subpoena itself may not have been oppressive, the lack of notice, as well as the failure to remedy or explain the lack of notice, does indicate bad faith. Moreover, with proper notice, the subpoena could have been narrowed during the meet and confer process without the necessity of filing a motion to quash. On the record presented, there appears to be no substantial justification (i.e., reasonable basis in law or fact) for opposing the instant motion. The court AWARDS Respondent attorney's fees of \$3,060.00 pursuant to Code of Civil Procedure section 1987.2, payable by Petitioners to Garrett Charchidi, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. By stipulation of the parties, the initial subpoena issued on 11/25/26 is ORDERED quashed, and Petitioners may serve Citibank with the revised subpoena attached as Exhibit "I" to the declaration of Jonathan J. Coleman (ROA 88).
01194033	Schmidt - Trust	TENTATIVE RULING Case: Schmidt - Trust 01194033 Calendar No: 6 Date: 08/19/26 MOTION TO STRIKE OR TAX COSTS (ROA 480)